

The Customs (Furnishing of Information) Rules, 2017

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Union of India - Act

The Customs (Furnishing of Information) Rules, 2017

UNION OF INDIA

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The Customs (Furnishing of Information) Rules, 2017

Rule THE-CUSTOMS-FURNISHING-OF-INFORMATION-RULES-2017 of 2017

Published on 14 December 2017

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The Customs (Furnishing of Information) Rules, 2017

Published vide Notification No. G.S.R. 1512(E), dated 14th December, 2017

Ministry of Finance

(Department of Revenue)

(Central Board of Excise and Customs)

No. 114/2017-Customs (N.T.)

G.S.R. 1512(E). - In exercise of the powers conferred by sections 108A read with section 156 of the Customs Act, 1962

(

52 of 1962

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Customs (Furnishing of Information) Rules, 2017.

(2)

They shall come into force from the 1st day of January, 2018.

2.

Definition.

(1)

In these rules, unless the context otherwise requires,-

(a)

"authorised person" means any person authorised by the class of person referred to in column (2) of the Table given in rule 3;

(b)

"Information-Administrator" means the proper officer specified by the Board for purposes of receipt of the information under section 108A of the Customs Act, 1962 from the authorised person;

(c)

"Information Receiving Authority" means an authority referred to in column (4) of the Table as given in rule 3 to receive the information from the class of person referred to in column (2) of the said Table.

(2)

Words and expressions used herein and not defined in these rules but defined in the Customs Act, 1962 (52 of 1962

) shall have the meaning respectively assigned to them in the Customs Act, 1962.

3.

Information to be furnished.

- The information required to be furnished under sub-section (1) of section 108A of the Customs Act, 1962, shall be furnished electronically by a person mentioned in column (2) of the Table below in respect of the all transactions of the nature specified in the corresponding entry in column (3) of the Table, recorded or received by him to the receiving authority mentioned in column (4) of the said Table.

Sl.No.

Class of person

Nature of transaction

Receiving Authority

(1)

(2)

(3)

(4)

1.

A Banking Company within the meaning of clause

(a) of section 45A of the Reserve Bank of India Act, 1934.

Details of foreign exchange transactions made or received by any person as per Annexure-1.

Directorate of Revenue Intelligence.

4.

Format, periodicity and manner of furnishing information.

(a)

The Information-Administrator may receive the information and may issue necessary instructions relating to the day to day administration of furnishing of the said information and the said Information Administrator may specify mandatory or non-mandatory fields in the format, periodicity and manner of furnishing information apart from the procedures, data structure and standards for ensuring secure capture and transmission of data, evolving and implementing appropriate security, archival and retrieval policies: Provided that till such time the Information-Administrator specifies the modalities for secure capture and transmission of data, the said information may be furnished through a secure, electronic medium

to the Information-Administrator.

(b)

The information referred to in rule 3 shall be verified and signed by the authorised person.

Annexure- 1

(i)

For Outward remittances:

Remitter Details

Remittee Details

Sr. No.

Purpose Code

Name of Remitter

Address of Remitter

PAN of Remitter

GSTIN No. of Remitter

Aadhaar No. of Remitter

IFSC

Bank Account no.

Name of Remittee

Address of Remittee

Swift Bic

Bank Account No.

Amount of Remittances in

Mode of Payment (Cash, TT, DD, etc)

Date of Remittance

Reference documents based on which such

Remittance is made or sent such as Bill of Entry number along with date, Invoice number along with date or similar documents

Foreign Currency

Indian Rupee (Amount only)

Currency Name

Amount

(ii)

For Inward Remittances:

Remittee Details

Remitter Details

Sr. No.

Purpose Code

Name of Remitter

Address of Remitter

PAN of Remitter

GSTIN No. of Remitter

Aadhaar No. of Remitter

IFSC

Bank Account no.

Name of Remittee

Address of Remittee

Swift Bic

Bank Account No.

Amount of Remittances in

Mode of Payment (Cash, TT, DD, etc)

Date of Remittance

Reference documents based on which such

Remittance is received such as Shipping Bill number along with date or invoice number along with date or similar documents

Foreign Currency

Indian Rupee (Amount only)

Currency Name

Amount

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